# The “What Can Mom Keep?” Checklist

What to gather, write down and ask about the house, the accounts and a spouse at home.

Mom is in care, her savings are paying for it each month, and Dad is still at home in the house. Nobody has told you how the house, the accounts or Dad's share are looked at, and you've heard different things from different people. Before you ask what Mom can keep, make sure you have these in hand. Check what you've done. Anything unchecked is something still to find or ask, not a verdict on Mom, on Dad or on your family.

## Gather

- [ ] The list of what Mom and Dad own, if you've already made one. If not, a rough one: the home, savings, retirement accounts, insurance and anything else of value.
- [ ] The deed to the house, if you can find it. If you can't, a note of where it might be.
- [ ] A recent statement for each account, with the name or names printed on it.
- [ ] The beneficiary forms for the retirement accounts and the insurance policies, where there are any.
- [ ] Trust papers, if anyone has mentioned a trust, and the insurance policies themselves.

## Write down

- [ ] Beside each thing on the list, whose name is on it: Mom's alone, Mom's and Dad's, someone else's, a trust, or “not sure.”
- [ ] Anything owned jointly with someone other than Dad, and with whom.
- [ ] What Dad relies on at home: the house, his own income, and the accounts he pays the bills from.
- [ ] What you've been told so far about what Mom can keep, with who said each thing. Keep what you're assuming on a separate list.

## Ask

- [ ] Which things on your list may be treated favorably under your state's Medicaid rules, and which may remain exposed. That is a question to bring to your Medicaid planner, not one to settle at home.
- [ ] Your questions about the house, about Dad as the spouse at home, and about anything in two names. Write them as questions, not as what you've heard.
- [ ] What estate recovery is, and whether it, a lien or another recovery issue may come up in Mom's situation in your state.
- [ ] The difference between Mom qualifying for Medicaid now and the asset and estate questions that may come up later. Ask your Medicaid planner to explain it.

- [ ] Whether additional legal planning should be considered, which goes to an elder law attorney, and whether additional financial planning should be considered, which goes to a licensed financial professional.

**What this checklist doesn't do**

It helps you gather, write down and ask. It doesn't say what Mom can keep, how any item is treated, or what your family should do about it. Those answers depend on your state's rules and on Mom's and Dad's situation, and they come from a professional who knows both. Nothing here is legal, financial or tax advice.

## Ready for the next step?

You've pulled the papers together and written your questions as questions. The planning interview asks about your family's situation and gives you a free planning report you can bring to any conversation about paying for Mom's care.

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